

## Opportunities for Strengthening Ocean Governance in the Southeast Pacific – Dialogue Workshop 1

### Workshop Summary

The STRONG High Seas project is a five-year project that aims to strengthen regional ocean governance for the conservation and sustainable use of marine biodiversity in areas beyond national jurisdiction. Collaborating with the Secretariat of the Comisión Permanente del Pacífico Sur (CPPS; Permanent Commission for the South Pacific), the project aims to develop and propose targeted measures to support the coordinated development of integrated and ecosystem-based management approaches for ocean governance in the Southeast Pacific.

Representatives from Colombia, Chile, Ecuador and Peru (CPPS member States) as well as Panama, global and regional organisations, regional scientific institutions, academia and NGOs took part in this workshop. A total of 41 participants attended the workshop (see Table 1). The workshop took place from 13-14 June in Cali, Colombia, and provided the participants with an opportunity to discuss the current status, interests and challenges for global and regional ocean governance and to foster exchange and build new networks.



Group picture. Photo by Ben Boteler, IASS.

A photo gallery from the workshop can be found [here](#).  
The workshop agenda can be found [here](#).  
The workshop presentations can be found [here](#).

For more information about the STRONG High Seas project, please visit: <https://www.iass-potsdam.de/en/research/strengthening-regional-ocean-governance-high-seas-strong-high-seas> and <http://www.prog-ocean.org/strong-high-seas-iki-project-launched-at-un-ocean-conference/#more-275> or contact: [stronghighseas@iass-potsdam.de](mailto:stronghighseas@iass-potsdam.de).

### Key messages

- The workshop highlighted the **importance of high seas biodiversity both globally and to the region of the Southeast Pacific** for human activities, such as fisheries, as well as ecosystem services, such as climate change regulation.
- The CPPS member States – Chile, Colombia, Ecuador, and Peru – as well as Panama outlined the **important role of conservation and sustainable use of marine biodiversity in their respective national ocean strategies**.
- The **connectivity between marine areas beyond national jurisdiction (ABNJ) and coastal areas** was recognised as a critical factor affecting the status of marine health and ultimately human wellbeing.
- **Key pressures on the high seas in the Southeast Pacific were identified** to be pollution through materials and waste, overexploitation of marine resources, destruction of marine habitats, incidental capture, noise pollution, contamination through fuels and ballast water disposal, greenhouse gas emissions (climate change) and collisions. Workshop participants agreed that most of these pressures will likely increase in the future as activities on the high seas will expand.
- **Scientific knowledge** was highlighted as a crucial building block for future governance and management of marine biodiversity. **Many data gaps exist** and especially socioeconomic information and information regarding pressures in ABNJ need to be assessed more systematically. Uncertainties make it highly challenging to forecast future scenarios and develop adequate management approaches
- Workshop participants agreed that **knowledge exchange, collaboration and cooperation within the region should be improved**, especially in view of the UN negotiations (Intergovernmental Conference on an international legally binding instrument under the UNCLOS on the conservation and sustainable use of marine biological diversity of areas beyond national jurisdiction on the conservation and sustainable use of marine biodiversity beyond national jurisdiction (BBNJ)) and with regard to regional actions.
- Participants identified in particular the **lack of an information-sharing mechanism** and the lack of a **centralised information platform** with regards to BBNJ issues in the region as a key ingredient for better regional cooperation.
- **CPPS** was identified as having a highly important convening role in the region in terms of coordination between the various public and private research institutes and its member States as well as **an important data repository** (ex. SPINCAM project data, etc.). It was recommended to further expand the existing platform to include, for example, details on regional events such as conference and workshops, a space to share reports and data, as well as a directory of experts.
- CPPS member States proposed **developing a shared regional vision for ABNJ** to gather and agree on key principles and relevant issues. Regular inter-agency meetings on ABNJ as well as the establishment of a coordination group under the CPPS could help strengthen collaboration and facilitate the development of such a vision.
- **Capacity building and technology transfer was identified as the most important Biodiversity Beyond National Jurisdiction (BBNJ) topic for the region**, being the basis for the other BBNJ elements (i.e. area-based management tools, environmental impact assessments, and marine genetic resources) to be negotiated at the UN.
- **Foreign Affairs ministries have a key role to play in global ABNJ issues** as they are the focal points for the coordination of national efforts on these issues and are tasked to lead their country's delegation at the UN BBNJ negotiations.
- **Capacity building** has been identified as a key requirement to enable ministry representatives involved in the BBNJ process to actively take part and shape the BBNJ discussions and negotiations. In this respect, **capacity building workshops on key issues pertaining to the BBNJ negotiations** have been identified as important for CPPS countries' ministries. **Webinars** have also been identified as being a useful tool that allows more stakeholders to be informed

about relevant BBNJ issues while keeping the costs relatively low.

- Public and private sectors, civil society and academia are relevant stakeholders in the ABNJ discussions and need to be involved. The **inclusion of a broader range of stakeholders** in future dialogue workshops is envisaged to further strengthen collaboration and exchange.

### Outlook and next steps

The workshop was the first in a series of five planned in the Southeast Pacific region. In addition, the STRONG High Seas project will organise technical workshops on specific topics. All future workshops will be planned in close consultation with the CPPS Secretariat, its member States, and other stakeholders in order to identify topics of relevance, need and interest for the region as well as an adequate methodological approach. **CPPS member States and other interested stakeholders are welcome to propose specific topics they want to be presented and discussed at future workshops.** A number of assessments (reports) are planned within the scope of the STRONG High Seas project, which will require active participation and collaboration from the CPPS member States and relevant regional stakeholders to ensure such assessments include available knowledge, expertise and data from the region. **CPPS member States and other interested stakeholders are welcome to contribute to and comment on the scientific reports to be developed under the STRONG High Seas project.** Drafts will be circulated to facilitate commenting and inputs.

A **mechanism for exchange** will be established between the STRONG High Seas Project and the CPPS Secretariat so that project communication and collaboration with its member States can be established.

### Summary of the presentations and discussions

#### Welcome and Opening of the Workshop

The two-day dialogue workshop, entitled 'Opportunities for Strengthening Ocean Governance in the Southeast Pacific', was opened by Ambassador Méntor Patricio Villagómez Merino (Secretary General of the Permanent Commission for the Southeast Pacific, CPPS), Lucien Chabason (Interim Director of Institute for Sustainable Development and International Relations, IDDRI), Michael Bock (German ambassador to Colombia), Andrea Ramírez Martínez (Technical Director at the Colombian Ministry of Environment and Sustainable Development) and Mary Lou Higgins (Director of World Wildlife Fund (WWF) Colombia).

The opening panel highlighted the **importance of the oceans for humanity in general and the Southeast Pacific region** in particular. The **transboundary nature of the ocean**, the activities that depend on it, and the pressures placed upon it, make it impossible to manage the marine areas within national jurisdiction without taking into account ABNJ. The panel stressed the need for a collective, ecosystem-based management of the ocean as a whole to preserve ocean health while guaranteeing the health of marine areas within the Exclusive Economic Zones (EEZs). While in the past ABNJ received little attention, marine areas beyond national jurisdiction are



Carole Durussel, Méntor Patricio Villagómez Merino, Lucien Chabason and Andrea Ramírez Martínez at the opening of the workshop. Photo by Ben Boteler, IASS.



nowadays more accessible to human activities, resulting in increased pressures on the marine environment. With this background, **States agreed in December 2017 to convene an Intergovernmental Conference** to elaborate the text of an international legally binding instrument under the United Nations Convention on the Law of Sea (UNCLOS) on the conservation and sustainable use of marine biological diversity of areas beyond national jurisdiction. Four rounds of negotiations will take place between 2018 and 2020, with the first meeting planned from 4 to 17 September 2018. The STRONG High Seas project has been highlighted as an opportunity for CPPS member States and other key stakeholders in the region to collaborate and initiate a dialogue on the conservation and sustainable use of biodiversity in ABNJ, to contribute technical expertise and build regional capacity for the BBNJ negotiations, to share lessons learnt and disseminate knowledge, and to provide support for a regional approach to addressing the challenges of marine biodiversity conservation and sustainable use of ocean resources in the Southeast Pacific.

### State of Play in Regional and Global Ocean Governance



Glen Wright presenting. Photo by Ben Boteler, IASS.

Glen Wright (IDDRI) presented an overview of the importance of ABNJ and the state of regional and global ocean governance. Different maritime zones have varying legal status. ABNJ is divided into the high seas (water column), which falls under the Freedom of the High Seas, and into The Area (seabed), which falls under the Common Heritage of Mankind. The main marine activities taking place globally in ABNJ include shipping and fisheries and the main environmental pressures include species extraction, bycatch, deep seabed mining (potential), bottom trawling and pollution including plastics.

**UNCLOS** is the umbrella convention for the ocean and provides important legal obligations, including the duty to collaborate, to protect the marine environment and to conserve marine living resources. **Sector specific conventions** notably on navigation, fishing, deep seabed mining, dumping and biodiversity further specify legal obligations for the regulation of specific activities. In addition, numerous global and regional **organisations have identified ecologically important marine areas**, including vulnerable marine ecosystems (VMEs) under Regional Fisheries Management Organisations (RFMOs), Particularly Sensitive Sea Areas (PSSAs; currently only identified within national jurisdiction) under the International Maritime Organization (IMO), Areas of Particular Environmental Importance (APEIs) under the International Seabed Authority (ISA), Ecologically or Biologically Significant Areas (EBSAs) under the Convention on Biological Diversity (CBD), Whale Sanctuaries under the International Whaling Commission (IWC), and World Heritage Sites under UNESCO's Intergovernmental Oceanographic Commission (IOC, currently only identified within national jurisdiction). Most RFMOs have similar founding conventions that build on rights and obligations under the UN Fish Stocks Agreement (UNFSA) but the implementation of management measures differs between them. In the case of the South Pacific Regional Fisheries Management Organisation (SPRFMO), bottom trawling is prohibited throughout its Convention Area, unless a member State can provide concluding information through the conduct of an environmental impact assessment that its planned bottom trawling activities will not have adverse impacts.

Challenges in the current ocean governance are due to the fragmented and sectoral-based nature of the legal and institutional framework, a lack of coordination and cooperation between organisations as well as gaps in the coverage of certain regions or species. At the regional level, Regional Seas Conventions (RSCs) and Regional Action Plans (RAPs), and RFMOs play an important role. Most

RSCs and RAPs are limited to covering only EEZs, with currently only four of them having a management mandate for ABNJ (these are: the Northeast Atlantic under the OSPAR Convention, the Mediterranean under the Barcelona Convention, the Southwest Pacific under the Noumea Convention and the Antarctic under the Convention on the Conservation of Antarctic Marine Living Resources - CCAMLR). The collaboration between the OSPAR Commission and the North-East Atlantic Fisheries Commission (NEAFC) provides a good example of cross-sectoral cooperation and collaboration at the regional level. This example, however, also shows that management measures established through regional cooperation under these organisations need to be recognised through a global legally binding instrument as otherwise the regulations established by the regional organisations are only legally binding to their respective member States (third party rule). The same applies to the Sargasso Sea, where the Sargasso Sea Commission established by a consortium of States and stakeholders looks into the possible establishment of management measures in ABNJ to conserve the Sargasso Sea region within the existing legal and institutional framework for the ocean.

The **engagement of regional organisations in the BBNJ process is seen as crucial** as they can provide regional lessons learned for the global level, support the implementation of a future instrument under UNCLOS and provide a platform for States in the regions to coordinate their regional positions. As defined in the UN General Assembly Resolution on the development of a new international agreement under UNCLOS, the future BBNJ agreement will need to incorporate and respect the current mandates of existing global and regional organisations.

### Ocean governance in the Southeast Pacific

Fernando Félix (CPPS) presented an overview of ocean governance in the Southeast Pacific, focusing on CPPS' current and planned activities in regard to ABNJ. CPPS is an intergovernmental organisation set up in 1952 through the Santiago Declaration to facilitate the coordination of the marine policies of its member States (Chile, Colombia, Ecuador, Peru), their activities in the region and their mandate in relation to ABNJ/BBNJ. In August 2012, CPPS member States signed the *Commitment of Galapagos for the XXI Century*, which expressed the request to strengthen CPPS' projection towards the Pacific Basin and States' interests in living and non-living resources in ABNJ. Through the 1981 Lima Convention (*'Convention for the Protection of the Marine Environment and Coastal Area of the Southeast Pacific'*), the CPPS member States and Panama work on the prevention, reduction and control of marine pollution and the protection of marine and coastal areas, including in areas beyond the EEZs as pollution on the high seas can affect national waters. Within the STRONG High Seas project, the CPPS Secretariat as the main political partner in the region has a proactive role in shaping the overall project's strategy, including in the development of the scientific analyses, and functions as a representative and coordinating body for the countries of the Southeast Pacific region.



Fernando Félix presenting. Photo by Ben Boteler, IASS.

### Introduction to the STRONG High Seas Project

Carole Durussel (Institute for Advanced Sustainability Studies, IASS) presented the [STRONG High Seas project](#) and the objectives of this kick-off dialogue workshop, which is the first in a series of five workshops to be organised in the Southeast Pacific region. The STRONG High Seas project is a five-year project (2017-2022) funded through the International Climate Initiative (IKI) of the German Federal Ministry for the Environment, Conservation and Nuclear Safety (BMU). It is coordinated by the

IASS and implemented together with IDDRI, BirdLife International, the International Ocean Institute (IOI) – Southern Africa, the Universidad Católica del Norte (UCN), WWF Colombia, and WWF Germany. Working with the Secretariat of the CPPS and the Secretariat of the West and Central Africa Regional Seas Programme (Abidjan Convention), this project focuses on **two focal regions (Southeast Pacific and Southeast Atlantic)** and has **three main components**:

- 1) Focus on the two focal regions: Southeast Pacific and Southeast Atlantic: This component aims to facilitate the development of comprehensive, cross-sectoral approaches to the conservation and sustainable use of biodiversity in ABNJ in the two focal regions. For this, different scientific assessments of the regions (incl. legal and institutional analysis; state of the high seas – ecological baseline and human pressures analysis; socio-economic assessment of human activities; conservation and management measures analysis; stakeholder analysis) will be undertaken and shaped through strategic dialogues with stakeholders to co-develop new approaches for high seas governance. Capacity building in the form of capacity building workshops will also be the focus of this project component.
- 2) Focus on strengthening dialogue between marine regions: This component aims to identify best practices and lessons learnt and share them with other marine regions. This is to facilitate joint learning and develop common approaches and a community of practice to strengthen ocean governance at the regional level. So far, three marine regions for exchange have been identified for the project: the Western Indian Ocean, the Southwest Pacific, and the Arctic regions. Under this project component, case studies of other non-focal marine regions will be done and dialogues involving the sharing of best practices and lessons learnt between these regions initiated.
- 3) Focus on linking the regional and the global level: The objective of this final component is to develop possible options for regional governance in a future international instrument under UNCLOS and transfer regional lessons learnt to the global level to promote ocean governance at different scales. Scientific assessments and case studies on how regional organisations can be included in the new BBNJ instrument and how coherence between the regional and global levels can be ensured will be done. Capacity building in the form of capacity building workshops organised on the side of the BBNJ negotiations in New York will also be the focus of this project component.

The STRONG High Seas project team is facilitating the development of this project, with no political objectives. The purpose of these annual dialogue workshops is to bring together relevant actors of the regions and to facilitate discussion between them. The STRONG High Seas project welcomes any inputs in the form of relevant reports, data and knowledge that can help shape the project and contribute to the scientific assessments done under this project.

### **Key Interests and Challenges for Ocean Governance in the Southeast Pacific**

Representatives of the Foreign Affairs Ministry of Chile, Colombia, Ecuador, Peru and Panama presented their ocean governance and highlighted the interests and challenges regarding ocean governance in the Southeast Pacific.

**Chile** has 6,500 km of coast and many islands. To date, around 47% of Chile's maritime space is protected. The management and monitoring of these protected areas can be a challenge. Artisanal fishing is highly important to the coastal communities in Chile. Aquaculture (especially salmon; Chile is the 2<sup>nd</sup> producer worldwide), transport and renewable energy are other important economic activities related to the ocean. Chile recently adopted a national ocean policy, taking into account interests of

the various relevant sectors. Chile's main focuses are sustainable fishing, the reduction of pollution (especially through plastic), as well as ocean acidification. Chile ratified UNCLOS, is a founding member of SPRFMO, cooperates as a cooperating non-party with the Inter-American Tropical Tuna Commission (IATTC) and is one of the countries who has organised an 'Our Ocean' conference (in Valparaiso in October 2015) and actively engages in this process. With regard to the BBNJ negotiations, Chile aspires to actively contribute to reaching a global, integrative agreement. At the moment, frequent discussions on BBNJ are taking place among the different ministries (14 institutions).

**Colombia** has coasts on the Pacific Ocean and the Caribbean Sea and various islands, with high marine biodiversity. The country is committed to meeting the Sustainable Development Goals (SDGs) and CBD Aichi Targets. Colombia has established several marine protected areas, amount to around 13% of the national waters. Two of Colombia's national policies deal explicitly with the topic of ocean (such as the National Strategy of 2007). Plastic pollution is of great concern and work is ongoing to ratify the Cartagena Protocol on land-based pollution. Blue economy and marine spatial planning are of high interest to Colombia, with work on the latter being supported by the CPPS. For Colombia, as a multi-ethnic and multicultural country, the participation of the indigenous groups is also highly important.

In the regional context, Colombia is an active member of the IATTC and has an observer status at SPRFMO. Colombia is also part of a Global Environment Facility (GEF) project developing a strategic plan for the wider Caribbean. Colombia has signed several conventions for the protection of megafauna, such as sharks, cetaceans, and other migratory species. While Colombia has not ratified UNCLOS, the country has participated in the Preparatory Committee to the BBNJ negotiations and is supportive of the development of a global BBNJ instrument. This instrument should not undermine previous agreements and should involve the largest possible participation of States. The lack of knowledge and data about ABNJ is seen as a challenge.

**Ecuador** has a territorial sea representing five times its terrestrial territory. The country boasts high marine biodiversity (such as around the Galapagos Islands) and participates in the majority of instruments related with the management of marine and coastal areas. Ecuador is a member of both IATTC and SPRFMO and has ratified both UNCLOS and UNFSA. Ecuador has a National Commission dealing with issues related to UNCLOS and set up an Interinstitutional Committee of the Sea, which unites six different ministries. In 2014, Ecuador approved an Oceanic and Coastal Policy and in 2017, a plan for coastal marine spatial planning for the period 2017-2021 was adopted. Also, Ecuador is working on developing a claim for its extended continental shelf.

**Peru** is traditionally a maritime country with an important fishing sector. Currently, Peru is the 5<sup>th</sup> or 6<sup>th</sup> fishing country in the world in terms of capture in tonnages. While Peru is not part of UNCLOS, it is interested in participating actively in the BBNJ negotiations and in strengthening regional cooperation, also through the RFMO. Peru currently works multi-sectorally in order to prepare for the BBNJ negotiations. It has been highlighted that the BBNJ instrument should not undermine the work and legislation under the RFMOs. Reaching a consensus in the BBNJ negotiations is seen as challenging since many countries have reservations and different opinions regarding topics such as the management of marine genetic resources and deep sea minerals, institutional development, the fight against illegal, unregulated and unreported (IUU) fishing, plastic pollution and the complementarity of global and regional initiatives. Issues around the fair and equitable sharing of marine genetic resources, the consolidation of the Common Heritage of Mankind principle, the reduction in the environmental footprint, preventing marine pollution (incl. plastics), capacity building, as well as strengthening the RFMOs are of particular interest to Peru.



**Panama** adopted a National Maritime Strategy in 2017 and is active in several projects regarding marine management, financed mainly through GEF. It is active in several organisations, such as IMO, Latin America Organization for Fisheries Development (OLDEPESCA), CPPS, and IATTC and is a Cooperating non-Contracting Party to SPRFMO. Panama has also ratified several international agreements, including UNCLOS, UNFSA, the 1995 FAO Code of Conduct, and the 1973 MARPOL Convention. The country focuses mainly on the topics of pollution (initiatives on ghost fishing gear), integrated coastal management, marine spatial planning, sustainable fisheries, carbon sequestration and ballast water.

### Key Interests and Challenges with regards to ABNJ in the SE Pacific - Break-out Groups



Work in the breakout groups. Photo by Ben Boteler, IASS.



Work in the breakout groups. Photo by Ben Boteler, IASS

Participants formed three mixed groups of stakeholders with diverse expertise and experiences. The three moderated groups were tasked to identify and prioritise the key human activities (in terms of socioeconomic importance) and environmental pressures (in terms of impact on biodiversity) in the ABNJ of the Southeast Pacific region. These topics were used as basis for discussions around interests and challenges as well as the complexity of human uses of marine resources in ABNJ and functioned as a starting point for future analyses under the STRONG High Seas project during 2018-2019.

In general, all three groups presented similar outcomes in the plenary discussion, with varying interpretations on certain issues. It became clear that many data gaps exist and that economic activities taking place in ABNJ need to be assessed more systematically. Also, envisioning the future developments of economic activities and environmental pressures was challenging due to uncertainties linked to economic trends and ecosystem behaviour. A general perception was that economic activities will increase due to a growing world population and thus rising demand for both living and non-living marine resources. In that regard, it was mentioned that it will be crucial to work on ways to increase economic activities while at the same time decreasing the related environmental pressures. The importance of scientific knowledge was also raised and participants emphasised the necessity to further develop research capacities in the region.

The following **major socioeconomic activities** and related **environmental pressures** were defined:

**Fishing:** There are large fleets operating in the high seas. Government subsidies for fishing in the high seas are perceived as an issue, acting as a driver for this activity. Although fisheries in the high seas are significantly less active than coastal fisheries, they are not insignificant. With developments in technology, the deep sea may become more accessible. A majority of participants suggested that fishing activities will increase in the future since demand increases along with the increase in



population. Different opinions were raised regarding the question if fish capture will decrease or increase in the future (are fish stocks fully exploited?). Aquaculture was mentioned as an activity that might potentially reduce fishing activity in the future. There were discussions about the impact and importance of **IUU fishing**. While some participants see IUU fishing in the Southeast Pacific as a large problem, others felt that it is under control and that better monitoring, control, and surveillance technology might be a way to further reduce IUU fishing. Generally, IUU fishing was perceived by participants to have a greater negative impact since it is not regulated. Environmental pressures related to fishing were mentioned to be pollution through materials and waste, overexploitation of marine resources, destruction of marine habitats and incidental capture.

**Transport and navigation:** About 90% of world trade is carried out by maritime transportation. Over time, there is likely to be an increase in the demand for foreign goods because (a) there is a growing world population and (b) a greater proportion of the population has the economic means to buy these goods. Although global maritime traffic is expected to increase in the next 50 years, it was discussed that the opening up of the North Atlantic passage in the Arctic due to the melting of the sea ice could lead to decreasing traffic through the Panama Canal and therefore a decrease in maritime traffic in the Southeast Pacific. It was further discussed that advances in technology might lead in the future to the replacement of current means of transportation, with more energy efficient transport systems and less noise pollution. Environmental pressures related to marine transportation were mentioned to be noise pollution, contamination through fuels and ballast water disposal, greenhouse gas emission and collisions.

**Deep Seabed Mining:** Although mining is not currently taking place in the high seas of the Southeast Pacific, participants agreed that it should be included in deliberations because it is highly likely that the seabed in ABNJ will be subject to extractive activities in the future.

Other socioeconomic activities such as **bio-exploration, energy generation, aquaculture, tourism** and **underwater communication technologies** were mentioned but not further elaborated upon due to time restrictions. In general, their importance and impact in ABNJ is perceived to be rather small.

**Climate change** is a critical global environmental pressure. Current predictions show that global temperatures will continue to increase in the future. This will lead notably to a loss of biodiversity as well as changes in oxygen levels in the ocean, which will impact on the photosynthesis ability of phytoplankton. Currently though, it has been shown that the Southeast Pacific region is the part of the planet least affected by ocean warming.

### **Presentations of other related projects**

**Josie Wastell of the UN Environment World Conservation Monitoring Centre (UN Environment WCMC) presented the [GEF-FAO-WCMC Deep Seas Project](#).** It is funded for a period of 5 years (2015-2019) by GEF and is implemented jointly by FAO and UN Environment. The project has four components: 1) improving application of policy and legal frameworks; 2) reducing adverse impacts on VMEs and components of EBSAs; 3) improving planning and adaptive management for ABNJ deep-sea fisheries; and 4) developing and testing a methodology for area-based planning. The fourth component is implemented by UN Environment WCMC and deals with area-based planning in ABNJ, with a focus on the Southeast Pacific and Western Indian Ocean as pilot regions. A report regarding case studies on cross-sectoral area-based planning (e.g. OSPAR/NEAFC and Joint Cooperation Strategy in the Mediterranean) will be published soon. The final report will be a synthesis study introducing cross-sectoral area-based planning measures for the two pilot regions.

**Mariana Blanco of MarViva presented the [Global Ocean Biodiversity Initiative \(GOBI\) project on the Costa Thermal Rica Dome](#),** also funded under IKI by the German Environment Ministry (BMU). The

Costa Rica Thermal Dome is an oceanographic feature of great ecological and economic importance. The upwelling of cold water in the area leads to a high primary productivity, which in turn attracts many species such as dolphins, turtles, tuna, sharks and whales, thus making it an important fishing ground. The geographical scope of the dome is fluctuating but revolves around a nucleus that is often situated in ABNJ. The sustainability and integrity of this marine ecosystem is especially affected by high maritime traffic (vicinity of the Panama Canal), overfishing and climate change (including the impacts of El Niño). A legal framework, improved knowledge of the area and financial resources are needed to improve the management of the Costa Rica Dome. A multi-sectoral process involving the competent national and regional organisations in the area (IMO, IATTC, Latin American Organization for Fisheries Development (OLDEPESCA), Central American Commission for Environment and Development (CCAD), UN Environment, etc.) is crucial. The Sargasso Sea Commission is seen as a good State-organisations collaborative example in the development of a possible governance mechanism for the conservation of the Sargasso Sea since the Sargasso weed also has a fluctuating nature.

### Legal, Institutional and Stakeholder Analysis

In an introductory presentation by Jaime Aburto (UCN), the term stakeholder and the concept of stakeholder analysis were introduced. An overview of the link between stakeholder participation and good governance was provided, including critical conditions for stakeholder participation and ideas for defining stakeholders for ABNJ. In general, inter-institutional and inter-sectoral coordination and cooperation is seen as key condition for the successful conservation and sustainable use of biodiversity in ABNJ.

Subsequently, participants were divided into three breakout groups. Each of the groups identified the broad stakeholder groups and the key stakeholders within these groups and defined their main interests and influence as well as opportunities for improving their participation. Time restrictions did not permit to create an exhaustive list of stakeholders and discuss all identified stakeholders in depth. Nevertheless, the exercise provided a good starting point and general overview and also will also help to for determine future stakeholder engagement strategies.



Presentation of results in plenary. Photo by Ben Boteler, IASS.

In general terms, **governments and intergovernmental organisations** are seen as key stakeholders in ABNJ. Participants explained that especially the **Foreign Affairs Ministries** have a key role to play in ABNJ issues. Apart from being the focal points for the coordination of national efforts on these issues, the Foreign Affairs Ministries also function as CPPS focal points and, in the case of some countries (Chile and Ecuador), manage platforms for exchange among different ministries and other institutions. **CPPS has an important role to play in the Southeast Pacific region and is seen as an important institutional platform** in the region to facilitate coordination and communication among its member States, including on ABNJ issues. With regards to intergovernmental organisations, it was noted that their influence and interest reflects somewhat the average influence and interest of their respective member States.

It was noted that the **private sector** has a high interest to continue the activity the company is dedicated to. Their influence was perceived as high. An exception is the financial sector/financiers where interest is perceived to be low.

**Academia** was perceived to have a high interest in the generation of knowledge and the conservation and protection of marine biodiversity in ABNJ. Their influence was determined to be rather low. Challenges identified for this stakeholder group were gaps in the socio-economic information and information about economic sectors in the region, limited access to technology and a lack of a coordination mechanism which could provide support, including by ensuring knowledge and data exchange and identifying regional necessities, opportunities, gaps, and challenges in technology and scientific information. Participants furthermore highlighted the need to ensure the use of standard methodologies for the region and the need for a regional vision in terms of scientific research.

In a similar way like academia, **NGOs and foundations** were perceived to have a high interest in the conservation and protection of marine biodiversity in ABNJ. Their influence was determined to be medium. Philanthropy and local communities were perceived as exceptions with philanthropy having a low interest and local communities having a low influence.

See Table 2 in the Annex which provides an overview of the identified stakeholders. The list was not considered as exhaustive.

### Opportunities for improving collaboration and cooperation

Participants agreed that public and private sectors, civil society and academia are relevant stakeholders in the ABNJ discussions and need to be involved. Cooperation among these sectors is seen as crucial. Although private sectors, civil society and academia do not directly take decisions, their input is needed for countries' decision-making process on ABNJ issues.

**Formal agreements such as Memoranda of Understanding (MoUs)** were identified by participants as potential pathway to build links between key organisations. However, while MoUs may often serve an 'aesthetic' function without necessarily implying any formal collaboration between organisations, they can often be the first step in building a more formal mechanism between organisations in the future. It was noted that CPPS and SPRFMO were in the process of finalising an MoU. **CPPS** was identified as having a highly important convening role in the region in terms of coordination between the various public and private research institutes and its member States as well as **an important data repository** (ex. SPINCAM project data, etc.). As there is no institutionalisation for research at the regional level, **CPPS is an important coordinator** in this regard.

Participants also identified the **lack of an information-sharing mechanism** and the lack of a **centralised information platform** with, for example, details on regional events such as conference and workshops, or a list/database of regional institutions and experts working on topics and issues related to ABNJ. It was recommended to create such a platform or webpage. Such a tool could be created within the STRONG High Seas project and the CPPS could be the potential host of such a platform but funding requirements would need to be discussed upfront. **Webinars** might be useful to reach out to many people and keep the costs relatively low.

CPPS member States also suggested creating **a shared regional vision for ABNJ** through drafting **an ABNJ paper**, which would allow the countries to gather and agree upon key principles between them on relevant ABNJ issues. Such a paper would be useful as the region moves forward towards the UN negotiations in September 2018 and would enable countries to identify opportunities for further collaboration regarding ABNJ in the Southeast Pacific. An agreed vision would also be highly useful

regardless of the UN negotiations and could play an important role strengthening collaboration within the region. CPPS member States also suggested that **regular inter-agency meetings on ABNJ** as well as the establishment of an **advisory group** (including representatives from NGOs and academia) would be of interest to them.

### **Conclusion and thank you**

The workshop Opportunities for Strengthening Ocean Governance in the Southeast Pacific convened numerous decision makers and stakeholders to share expertise, experiences and knowledge and to discuss topics of key importance regarding marine biodiversity in ABNJ in the Southeast Pacific. This workshop kick-offs the work and research to be done between the STRONG High Seas project including CPPS in collaboration with regional decision makers and stakeholders. The workshop organisers wish to thank all participants for their active engagement and contribution to this event and look forward to continuing the collaboration over the coming years.



**Table 1 List of participants**

| <b>Name</b>                     | <b>Organization</b>                                                                                                  |
|---------------------------------|----------------------------------------------------------------------------------------------------------------------|
| Aburto Frias, Jaime             | Universidad Católica del Norte - Millennium Nucleus of Ecology and Sustainable Management of Oceanic Islands (ESMOI) |
| Alonso Carvajal, David          | Marine and Coastal Research Institute - INVEMAR                                                                      |
| Blanco, Mariana                 | MarViva                                                                                                              |
| Bock, Michael                   | German Ambassador to Colombia                                                                                        |
| Boteler, Ben                    | Institute for Advanced Sustainability Studies (IASS)                                                                 |
| Cañizales Castañeda, Bolivar    | Ministry of Foreign Affairs of Panama                                                                                |
| Castellanos-Galindo, Gustavo    | World Wildlife Fund for Nature (WWF) Colombia                                                                        |
| Chabason, Lucien                | Institute for Sustainable Development and International Relations (IDDRI)                                            |
| Durussel, Carole                | Institute for Advanced Sustainability Studies (IASS)                                                                 |
| Félix, Fernando                 | Permanent Commission for the South Pacific (CPPS)                                                                    |
| Felton, Nishi                   | World Wildlife Fund for Nature (WWF) Colombia                                                                        |
| Fischer, Johanne                | South Pacific Regional Fisheries Management Organisation (SPRFMO)                                                    |
| Gonzales Araujo, Arturo Daniel  | Ministry of Production (Vice-Ministry of Fisheries and Aquaculture) of Peru                                          |
| Gonzalez Delgadillo, Ana Maria  | Ministry of Environment and Sustainable Development of Colombia                                                      |
| Higgins, Mary Lou               | World Wildlife Fund for Nature (WWF) Colombia                                                                        |
| Laborda, Christian              | PEW Charitable Trusts                                                                                                |
| Leslie, Amie                    | World Wildlife Fund for Nature (WWF) Peru                                                                            |
| Machuca, Monica                 | Permanent Commission for the South Pacific (CPPS)                                                                    |
| Martinez, Rodney                | International research center on El Niño (CIIFEN)                                                                    |
| Masson Fiallos, Victor Hugo     | Ministry of Foreign Affairs and Human Mobility of Ecuador                                                            |
| Moreno, Kelly                   | Ministry of Environment and Sustainable Development of Colombia                                                      |
| Naranjo, Luis German            | World Wildlife Fund for Nature (WWF) Colombia                                                                        |
| Ortiz Cevallos, Verónica Karina | Ministry of Foreign Affairs and Human Mobility of Ecuador                                                            |
| Ovalle Barros, María Jesús      | Ministry of Environment of Chile                                                                                     |
| Packeiser, Tim                  | World Wildlife Fund for Nature (WWF) Germany                                                                         |
| Ponce Bravo, Jesús              | Ministry of Foreign Affairs of Peru                                                                                  |
| Prüssmann, Johanna              | World Wildlife Fund for Nature (WWF) Colombia                                                                        |
| Ramirez Martinez, Andrea        | Ministry of Environment and Sustainable Development of Colombia                                                      |
| Rosadio Garcés, Samuel          | Ministry of Foreign Affairs of Peru                                                                                  |
| Rosero-Garcia, Edgar Armado     | Colombian Ocean Commission                                                                                           |
| Tobar, Santiago                 | Ministry of Foreign Affairs and Human Mobility of Ecuador                                                            |
| Torres, Isauro                  | Ministry of Foreign Affairs of Chile                                                                                 |
| Vallejo Rendon, Alvaro          | International Union for Conservation of Nature (IUCN)                                                                |
| Van der Meer, Liesbeth          | Oceana                                                                                                               |
| Vega, Salvador                  | Ministry of Foreign Affairs of Chile                                                                                 |
| Velez Crismatt, María Claudia   | Ministry of Foreign Affairs of Colombia                                                                              |
| Villagomez, Mentor              | Permanent Commission for the South Pacific (CPPS)                                                                    |
| Viteri Mejia, Cesar             | Conservation International (CI) Ecuador                                                                              |
| Wastell, Josie                  | UN Environment World Conservation Monitoring Centre                                                                  |
| Wienrich, Nicole                | Institute for Advanced Sustainability Studies (IASS)                                                                 |
| Wright, Glen                    | Institute for Sustainable Development and International Relations (IDDRI)                                            |
| Yannicelli, Beatriz             | Universidad Católica del Norte - Millennium Nucleus of Ecology and Sustainable Management of Oceanic Islands (ESMOI) |
| Zapata, Luis                    | World Wildlife Fund for Nature (WWF) Colombia                                                                        |

**Table 2: Overview of stakeholders**

| Geo-geographical scope            | Stakeholder group                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |                                                                                                                                                                                                                                                                                                                                                              |                                                                                                                                                                                                         |                                                                                                                                                                                                                                                                                                        |
|-----------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|                                   | Government                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 | Private sector                                                                                                                                                                                                                                                                                                                                               | Academia                                                                                                                                                                                                | NGOs and foundations                                                                                                                                                                                                                                                                                   |
| <b>Cross-cutting</b>              | Our Ocean Conference; 2030 Agenda SDG 14; Other conferences and workshops                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |                                                                                                                                                                                                                                                                                                                                                              |                                                                                                                                                                                                         |                                                                                                                                                                                                                                                                                                        |
| <b>Inter-national/<br/>Global</b> | <ul style="list-style-type: none"> <li>• International Seabed Authority (ISA)</li> <li>• International Maritime Organization (IMO)</li> <li>• International Whaling Commission (IWC)</li> <li>• UN agencies</li> <li>• Food and Agricultural Organization (FAO)</li> <li>• Global Environment Facility (GEF)</li> <li>• Agreement on the Conservation of Albatrosses and Petrels (ACAP)</li> <li>• Convention on International Trade in Endangered Species of Wild Fauna and Flora (CITES)</li> <li>• Convention on Biological Diversity (CBD)</li> <li>• Convention on Migratory Species (CMS)</li> <li>• Intergovernmental Oceanographic Commission of UNESCO (IOC-UNESCO)</li> <li>• Global Ocean Observing System (GOOS)</li> <li>• World Meteorological Organization (WMO)</li> </ul> | <ul style="list-style-type: none"> <li>• EUROPECHE</li> <li>• Pharmaceutical industry</li> <li>• International coalition of fisheries organisations</li> <li>• International Cable Protection Committee (ICPC)</li> <li>• Marine Stewardship Council (MSC)</li> <li>• Financiers</li> <li>• Telecommunication industry</li> <li>• Mining industry</li> </ul> | <ul style="list-style-type: none"> <li>• Foreign universities /research institutes</li> </ul>                                                                                                           | <ul style="list-style-type: none"> <li>• Greenpeace International</li> <li>• MarViva</li> <li>• PEW Charitable Trusts</li> <li>• World Wildlife Fund (WWF)</li> <li>• International Union for Conservation of Nature (IUCN)</li> <li>• The Nature Conservancy (TNC)</li> <li>• Philanthropy</li> </ul> |
| <b>Regional</b>                   | <ul style="list-style-type: none"> <li>• Permanent Commission for the Southeast Pacific (CPPS)</li> <li>• South Pacific Regional Fisheries Management Organisation (SPRFMO)</li> <li>• Inter-American Tropical Tuna Commission (IATTC)</li> <li>• Latin American Organization for Fisheries Development (OLDEPESCA)</li> </ul>                                                                                                                                                                                                                                                                                                                                                                                                                                                             | <ul style="list-style-type: none"> <li>• Regional shipping organisation</li> </ul>                                                                                                                                                                                                                                                                           | <ul style="list-style-type: none"> <li>• Specific research projects</li> <li>• Scientific committees</li> <li>• International Research Centre on El Niño (CIIFEN)</li> <li>• ERFEN committee</li> </ul> | <ul style="list-style-type: none"> <li>• Deep Sea Conservation Coalition (DSCC)</li> </ul>                                                                                                                                                                                                             |
| <b>National</b>                   | <ul style="list-style-type: none"> <li>• Agencies of Fisheries</li> <li>• Ministry of Environment</li> <li>• Ministry of Foreign Affairs</li> <li>• Offices for intellectual property rights</li> <li>• Ministry of defence</li> <li>• Marine research institutes</li> <li>• Mining and oil: COCHILCO (Chile)</li> <li>• Oil and Mining Society (Peru)</li> </ul>                                                                                                                                                                                                                                                                                                                                                                                                                          | <ul style="list-style-type: none"> <li>• National fisheries organisations</li> <li>• National shipping organisations</li> <li>• Processing companies</li> </ul>                                                                                                                                                                                              | <ul style="list-style-type: none"> <li>• National research institutes</li> </ul>                                                                                                                        | <ul style="list-style-type: none"> <li>• Oceana</li> <li>• Birdlife International</li> </ul>                                                                                                                                                                                                           |
| <b>Local</b>                      |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            | <ul style="list-style-type: none"> <li>• Local fishing organisations</li> </ul>                                                                                                                                                                                                                                                                              |                                                                                                                                                                                                         | <ul style="list-style-type: none"> <li>• Local communities</li> </ul>                                                                                                                                                                                                                                  |